

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
EVA LOPEZ,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, and KEVIN DWYER, individually and in
his official capacity,Defendants.
-----X

Index No.:

SUMMONSPlaintiff designates New York
County as the place of trial.The basis of venue is:
Location of the incidentNinth Precinct, located at
321 East 5 Street
New York, NY, 10003

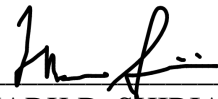
County of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 9, 2022

MARK DAVID SHIRIAN P.C.

By: 

MARK D. SHIRIAN, ESQ.

*Attorneys for Plaintiff***EVA LOPEZ**228 East 45th Street - Suite 1700-B

New York, New York 10017

Tel.: (212) 931-6530

Fax: (212) 898-0163

Email: mshirian@shirianpc.com

To:

CITY OF NEW YORK

Corporation Counsel
100 Church St., 5th Fl.
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

Corporation Counsel
100 Church St., 5th Fl.
New York, NY 10007

KEVIN DWYER, individually and in his official capacity,

321 East 5 Street
New York, NY, 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EVA LOPEZ,

Plaintiff,

Index No.:

Date Purchased:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, and KEVIN DWYER, individually and in
his official capacity,

Defendants.

-----X

Plaintiff, **EVA LOPEZ**, by her attorneys, **MARK DAVID SHIRIAN P.C.**, complaining
of the Defendants, **CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT**, and **KEVIN DWYER, individually and in his official capacity**, (collectively,
“defendants”), respectfully allege, upon information and belief that:

PRELIMINARY STATEMENT

1. This is a civil action in which Plaintiff seek relief for the violation of her rights secured by the laws of the State of New York and the New York State Constitution.
2. The claims arise from an incident in which Defendants subjected Plaintiff to inter alia Defamation Per Se and Negligent Infliction of Emotional Distress.
3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants and an award of costs and attorneys’ fees, and such other and further relief as this Court deems just and proper.

VENUE

4. Venue is proper in this Court as Defendant New York City has offices, conducts business, and can be found in New York County, and the causes of action arose and occurred in New York

County.

PARTIES

5. Plaintiff Ms. Eva Lopez (“Ms. Lopez”) is a United States citizen and at the time of the incident herein resided in the County of Queens, City and State of New York.

6. Defendant, **CITY OF NEW YORK**, is a municipal corporation organized under the laws of the State of New York.

7. That at all of the times hereinafter mentioned, and upon information and belief, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

8. Detective **KEVIN DWYER** (“Detective Kevin Dwyer”) at all times here relevant was and is a member of the New York City Police Department (“NYPD”) and is sued in their individual and professional capacities.

9. At all times mentioned, Defendants were acting under color of state law, under color of the statutes, ordinances, regulations, policies, and customs and usages of the City of New York.

NOTICE OF CLAIM

10. In accordance with General Municipal Law Section 50-e and within ninety days of the events giving rise to these claims, Plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller.

11. That on August 26, 2021, **EVA LOPEZ**, herein duly presented in writing to the defendants, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

12. On December 2, 2021, Plaintiff appeared for a General Municipal Law § 50-h hearing.
13. That more than thirty days have elapsed since the hearing and New York City has failed to settle and refused to make an adjustment of any claim herein set forth.
14. That all conditions precedent to the bringing of this action has been complied with.
15. That their action was commenced within one year and ninety (90) days after the accrual of the cause of action herein.

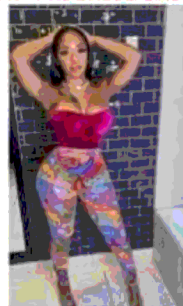
FACTUAL ALLEGATIONS

16. Ms. Lopez is a 31-year old female.
17. On or about August 16, 2021, Plaintiff EVA LOPEZ was in a car after getting off of an airplane with Jonathan Ruiz, her boyfriend.
18. Jonathan Ruiz received a message from his friend who said he saw Plaintiff, EVA LOPEZ on the Internet in a wanted sign (hereinafter "Wanted Sign") issued by the NYPD and asked whether it is true.
19. The Wanted Sign, issued by Defendant, NYPD Detective Kevin Dwyer, used a photograph of Plaintiff Eva Lopez, believed to be taken from her social media page, claiming that she was wanted for Grand Larceny.
20. Specifically, the aforementioned wanted sign used a photograph image of Plaintiff EVA LOPEZ on top of the following message:

-continued on the following page-



WANTED
FOR GRAND LARCENY
 PERPETRATOR - PROBABLE CAUSE TO ARREST



UNK UNK / FEMALE / BLACK / 25 YEARS OF AGE
 HEIGHT 5' 3" , WEIGHT 125 lbs., HAIR BLACK, EYES BLACK

The 9th Precinct Detective Squad is attempting to identify the subject pictured above for Grand Larceny. On August 3, 2021 the complainants roommate did reply to an online escort advertisement and while the subject was at his apartment at 178 2nd Avenue the subject did remove complainants Rolex watch valued at \$13000 and a Chase credit card without permission or authority to do so.

Anyone with information regarding the above subject ,
 please notify Det. KEVIN DWYER at 212-477-7809
 OR Detective Borough Manhattan South at 212-477-7447

Investigator: Det. KEVIN DWYER
 Command Assigned: 238-9 DET SQUAD
 Case# 2021-1896 Complaint Report# 2021-009-03371

"The Ninth Precinct Detective Squad is attempting to identify the subject pictured above for Grand Larceny. August 3, 2021, the complainants roommate did reply to an online escort advertisement and while the subject was at his apartment at 178 2nd Avenue, the subject did remove complainants Rolex watch valued at \$13,000.00 and Chase credit card without permission of authority to do so (Case No.: 2021-1896; Complaint Report No.: 2021-009-03371)."

21. Upon information and belief, the aforementioned wanted sign was issued by Investigator Det. Kevin Dwyer of the Ninth Precinct Detective Squad., acting in his capacity as a detective of the NYPD.
22. When EVA LOPEZ and her boyfriend first saw the aforementioned wanted sign, they both thought that it was photo-shopped and were both shocked.
23. Ms. Lopez was texted by several different people that day with regard to the Wanted Sign.

24. Ms. Lopez was shocked.

25. Plaintiff EVA LOPEZ then reposted the aforementioned wanted sign on her personal Instagram page to clear up her innocence and the fact that the wanted posted should not have been directed at her.

26. After a short moment, friends of Plaintiff EVA LOPEZ started to call her and asked if she was OK.

27. Plaintiff EVA LOPEZ told her friends that it was just a fake story. However, a manager from Plaintiff EVA LOPEZ's employer named Joelle called Plaintiff EVA LOPEZ, and he informed her that the aforementioned wanted sign from the NYPD might actually be real and that she should call the number indicated in the wanted sign.

28. On or about August 16, 2021, at approximately 6:04 PM, Plaintiff EVA LOPEZ. called Detective Dwyer.

29. Plaintiff EVA LOPEZ explained that she was the individual in the photograph and thought that this was fake and that she wanted to make sure that she's not in trouble.

30. Detective Dwyer confirmed that he did think it was Plaintiff EVA LOPEZ at first because the two victims showed them pictures of her and that it was for sure Plaintiff EVA LOPEZ.

31. Detective Dwyer reiterated that they conducted an investigation and found a surveillance video from the building and that although the female perpetrator did look similar to Plaintiff EVA LOPEZ, the female perpetrator had a sleeve tattoo on her arm, but Plaintiff EVA LOPEZ does not.

32. Detective Dwyer knew it was an issue before she called and the aforementioned wanted sign had already been taken down on social media, including Facebook and other NYPD websites.

33. Ms. Lopez had absolutely nothing to do with any grand larceny.
34. Detective Kevin Dwyer acknowledged that she was not involved in any grand larceny.
35. However, the aforementioned wanted sign with Plaintiff EVA LOPEZ photograph was disseminated by many media outlets and social media pages blogs, and many family and friends contacted Plaintiff EVA LOPEZ regarding the aforementioned wanted sign.
36. Defendants made a false statement charging Plaintiff EVA LOPEZ with a serious crime.
37. Defendants published and continue to publish the false statement to third parties without authorization or privilege.
38. Defendants were at fault for their actions. Defendants' actions were intentional, or at least negligent. Plaintiff has been damaged by Defendants' actions in an amount no less than \$30 million dollars.
39. Plaintiff brings this action for defamation per se, libel, slander, intentional infliction of emotional distress, negligent infliction of emotional distress, negligence, negligent hiring, supervision, retention and *respondeat superior*.
40. Ms. Lopez was extremely upset and continues to be upset by the presence of her picture on the Wanted Sign.
41. This incident has damaged Ms. Lopez' personal reputation in her neighborhood and has damaged her professional reputation in her employment.
42. Ms. Lopez had to report the incident to her supervisor at her employment.
43. This incident has caused and continues to cause Ms. Lopez severe mental anguish and emotional distress. Ms. Lopez was unable to sleep for weeks after the incident.

**AS AND FOR A FIRST CAUSE OF ACTION FOR DEFAMATION PER SE AGAINST
DEFENDANTS, CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, AND KEVIN DWYER, INDIVIDUALLY AND IN HIS OFFICIAL
CAPACITY**

44. Plaintiff repeats and realleges by reference each and every allegation contained in the above stated paragraphs, and incorporates the same herein as though fully set forth.
45. Defendants made a false statement charging Plaintiff with a serious crime.
46. Defendants published and continue to publish the false statement to third parties without authorization or privilege.
47. Defendants were at fault for their actions.
48. Defendants' actions were intentional, or at least negligent.
49. Plaintiff has been damaged by Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS AGAINST DEFENDANTS, CITY OF NEW YORK, THE
NEW YORK CITY POLICE DEPARTMENT, AND KEVIN DWYER, INDIVIDUALLY
AND IN HIS OFFICIAL CAPACITY**

50. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.
51. Defendants' conduct towards Plaintiff was negligent, unreasonable, and so extreme in degree and outrageous in character as to go beyond all possible bounds of decency.
52. Defendants' conduct caused Plaintiff severe emotional distress.
53. Defendants knew, or should have known, that such distress was substantially certain to occur as a result of their negligent conduct.
54. Plaintiff has been damaged as a result of Defendants' conduct in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A THIRD CAUSE OF ACTION FOR *RESPONDEAT SUPERIOR*
AGAINST DEFENDANTS, CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, AND KEVIN DWYER, INDIVIDUALLY AND IN HIS OFFICIAL
CAPACITY

55. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.

56. Detective Kevin Dwyer was acting in his capacity as an officer of the NYPD when his actions damaged Plaintiff.

57. New York City, as the employer of Detective Kevin Dwyer, is vicariously liable for the damages suffered by Plaintiff as a result of the unlawful and wrongful acts of Detective Kevin Dwyer.

58. Plaintiff has been damaged a result of Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this court.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS, CITY OF
NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT

59. Plaintiff repeats and realleges by reference each and every allegation contained herein.

60. That the defendants, **CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT**, were negligent in its hiring and training practices of its police detectives: in that it retained detectives not fit by temperament or personality to be detectives; in failing to fire detectives not fit for their position; in failing to instruct detectives as to the civil rights of defendants; in the malicious treatment of plaintiff; and in failing to avoid the occurrence although there was an opportunity to do so.

61. As a result of those breaches, which were the proximate causes of Plaintiff's injury, Plaintiff **EVA LOPEZ**, suffered harm and damages.

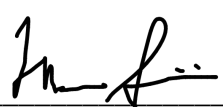
62. Solely as a result of the foregoing, plaintiff demands judgment for negligence against the defendants **CITY OF NEW YORK AND THE NEW YORK CITY POLICE**

DEPARTMENT in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

WHEREFORE, the Plaintiff, **EVA LOPEZ** demands judgment against the Defendants together with costs and disbursements as follows: In favor of Plaintiff in an amount to be determined by a jury, but at least equal to or exceeding the jurisdictional requirement for each of Plaintiff's causes of action; Awarding Plaintiff punitive damages in an amount to be determined by a jury; Awarding Plaintiff reasonable attorneys' fees, costs, and disbursements of this action; And such other and further relief as the Court deems just and proper.

Dated: New York, New York
March 9, 2022

MARK DAVID SHIRIAN P.C.

By: 

MARK D. SHIRIAN, ESQ.

Attorneys for Plaintiff

EVA LOPEZ

228 East 45th Street - Suite 1700-B

New York, New York 10017

Tel.: (212) 931-6530

Fax: (212) 898-0163

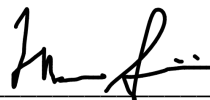
Email: mshirian@shirianpc.com

ATTORNEY'S VERIFICATION BY AFFIRMATION

MARK D. SHIRIAN, affirms and says:

1. I am a member at the firm of MARK DAVID SHIRIAN P.C., attorneys for Plaintiff **EVA LOPEZ**.
2. I make this verification because Plaintiff resides in Queens County, New York, a county other than New York County, New York, in which my office is located.
3. I have read the foregoing Verified Complaint and it is true to the best of my knowledge and belief, after reasonable inquiry.

Dated: New York, NY
March 9, 2022



MARK D. SHIRIAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No. _____

EVA LOPEZ,

Plaintiff,

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and KEVIN
DWYER, individually and in his official capacity,

Defendants.

SUMMONS & VERIFIED COMPLAINT

MARK DAVID SHIRIAN P.C.

Attorneys for Plaintiff

EVA LOPEZ

228 East 45th Street - Suite 1700-B

New York, New York 10017

Tel.: (212) 931-6530

TO:

Service of a copy of the within

is hereby admitted.

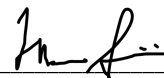
Dated:

Attorneys for

CERTIFICATION

I hereby certify that, to the best of my knowledge, information and belief, the presentation of **SUMMONS & VERIFIED COMPLAINT** and the contentions therein are not frivolous as defined in Subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator (22NYCRR).

Dated: New York, New York
March 9, 2022



Mark D. Shirian, Esq.
Attorneys for Plaintiff
As Designated Above